

Complaint Report (CCRB)

CCRB Case No :	201113666	C/V Report Date :	Thu, 10/20/2011 10:55 AM
Complaint Type :	CCRB	Investigator :	Cassandra Watson
Complaint Made At :	CCRB	Ref. No	
Received Date (CCRB) :	Thu, 10/20/2011 10:55 AM	Mode :	Phone
Incident Date(s) :	Tue, 10/18/2011 9:40 PM		
Place of Occurrence:	[REDACTED]	Precinct:	48
Location :	Street/highway	Boro:	Bronx
Reason for Initial Contact :	PD suspected C/V of violation/crime - auto		
Charges:	Arrest - other violation/crime		

Complainant/Victim Details

Name:	[REDACTED]	Type:	Comp/Victim
Address:	[REDACTED]		
Contacts:	[REDACTED]	[REDACTED]	
	[REDACTED]	[REDACTED]	
	[REDACTED]		
Gender:	[REDACTED]	Ethnicity:	[REDACTED]
Person Assisting:		Date of Birth:	[REDACTED]

Name:	[REDACTED]	Type:	Victim
Address:	[REDACTED]		
Contacts:	[REDACTED]	[REDACTED]	
	[REDACTED]	[REDACTED]	
	[REDACTED]		
Gender:	[REDACTED]	Ethnicity:	[REDACTED]
Person Assisting:		Date of Birth:	[REDACTED]

Officer(s) Named in Complaint

Rank	Officer	S/W Officer	Tax No	Race	Cmd	Allegations/Board Dispositions
POM	Miguel Frias	Subject Officer	[REDACTED]	Hispanic	048	Vehicle stop - (A) Exonerated
POM	Miguel Frias	Subject Officer	[REDACTED]	Hispanic	048	Frisk - (A) Unsubstantiated
POM	Miguel Frias	Subject Officer	[REDACTED]	Hispanic	048	Search (of person) - (A) Unsubstantiated
POM	Jose Ramos	Subject Officer	[REDACTED]	Hispanic	048	Vehicle search - (A) Unsubstantiated

Initial Complaint Narrative

██████████ and ██████████ rode in ██████████'s vehicle when they were pulled over by PO1 and PO2. PO1 explained that he saw ██████████ "looking into" ██████████'s white Ford Expedition, which was parked around the block; ██████████ denied this had happened. PO1 questioned ██████████ about his ownership of the white Ford Expedition. ██████████ replied, "If we were stopped in a black Acura, why are you questioning us about the white Ford Expedition?" ██████████ and ██████████ exited the vehicle and stood at the rear while PO1 searched the vehicle two times, locating a switchblade knife beneath the front passenger seat. PO1 became upset as ██████████ questioned his authority and said that ██████████ was under arrest for possession of the switchblade knife. ██████████ was released from the scene without summons or arrest; he drove away. Additional plainclothes officers arrived and ██████████ was transported to the 48th Precinct stationhouse, where he was charged with ██████████. His white Ford Expedition was impounded despite the fact that it was legally parked. ██████████ did not know ██████████'s contact information at the time of filing his complaint, but believed that his legal surname might be "██████████". He provided ██████████'s license plate number as ██████████. PO1: Hispanic, male, 6'2", medium build, tan, black, 30's; PO2: male, Hispanic, lighter, 5'8", medium, 30's, low Cesar cut. He provided officer information "PO Miguel Frias, tax number ██████████" obtained from his property voucher.

Witness
